

25STCV02636 25STCV02636

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Case Number: 25STCV02636 Hearing Date: July 23, 2026 Dept: 408

Defendant Irma Yolanda Marroquin's Counsel Edward A.

Esqueda's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

I.

BACKGROUND

On January 30, 2025, Plaintiff

Antonio Fernandez ("Plaintiff") filed a complaint against Defendants Irma

Yolanda Marroquin and Sheri Ferrand ("Defendants") alleging causes of action for

1.

Violations

of the Americans with Disabilities Act (42 U.S.C. §§ 12101-12189); and

2.

Violations

of the Unruh Civil Rights Act (Cal. Civil Code §§ 51 – 53).

On June 16, 2026, counsel for

Defendant Irma Yolanda Marroquin ("Marroquin"), Edward A. Esqueda ("Counsel"),

filed: (1) MC-051, Motion to be Relieved as Counsel; (2) MC-052, Declaration in

Support of Motion to be Relieved as Counsel; and (3) MC-053, Proposed Order. No

opposition or other responsive pleading has been filed.

II.

LEGAL

STANDARD

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

An attorney moving to be relieved as counsel under California Code of Civil Procedure section 284(2) must meet the requirements set out in California Rules of Court, rule 3.1362. To comply with Rule 3.1362, the moving party must submit the following forms: (1) Notice of Motion and Motion to be Relieved as Counsel; (2) Declaration in Support of Attorney's Motion to be Relieved as Counsel; and (3) Order Granting Attorney's Motion to be Relieved as Counsel. (Cal. Rules of Court, Rule 3.1362, subd. (a), (c), (e).)

The moving party must serve the aforementioned forms on the client and all other parties who have appeared in the case. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Further, when the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed. (Ibid.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel provided a motion to be relieved as counsel; a declaration in support; and a proposed order granting Counsel's motion.

The declaration states that, on June 2, 2026, Marroquin appeared in Counsel's office and demanded her file stating that Marroquin was seeking new counsel and that she no longer wanted Counsel to continue with her case. (Esqueda Decl., ¶ 2.) Accordingly, Counsel declares

there has been a breakdown in communications warranting the requested relief. (Ibid.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to Marroquin^[1].

IV.

CONCLUSION

Defendant Irma Yolanda Marroquin's Counsel Edward A. Esqueda's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

[1] The court notes that there is no filing of proof of service as to this motion and supporting documents to Marroquin. The court will inquire at the hearing regarding the status of the proof of service and may change its ruling accordingly.